

		Additionally, as no prejudice is apparent, leave to file is GRANTED. Defendant shall separately file the proposed Cross Complaint, attached as Exhibit A to the Declaration of Erika Sandler, within 5 days of this order. Defendant to give notice.
7	Chaganti vs. Red Tail Residential LLC	<u>Motion to Dismiss or Stay for Forum Non Conveniens</u> The court DENIES without prejudice specially appearing Defendants RED TAIL RESIDENTIAL, LLC and LINDSY HARVEY's motion to dismiss or stay action for forum non conveniens. On 5/15/26, the court posted a tentative ruling, which described the reasons why Defendants failed to meet their burden of establishing that a mandatory forum selection clause was enforceable between the parties and why the public and private factors are neutral under a traditional discretionary forum non conveniens analysis. Defendants requested an opportunity to provide supplemental briefing to cure any defects raised in the tentative ruling, which the court granted. In Defendants' supplemental brief, Defendants offer two declarations, one by Lindsay Harvey and one by Lori Jones, which attempt to authenticate a lease agreement. Both declarations end with "I declare under the penalty of perjury the foregoing is true and correct." (See ROA 96 at 2:12 & ROA 97 at 2:16). Plaintiff objects to these declarations on the grounds that it does not comply with California law. Plaintiff is correct. The declarations are not made under penalty of perjury <u>under the laws of the State of California</u>. (See Code of Civ. Proc., § 2015.5.) "[Code of Civil Procedure] Section 2015.5 seeks to enhance the reliability of all declarations used as hearsay evidence by disclosing the sanction for dishonesty. Thus, the statute requires some acknowledgement on the face of the declaration that perjured statements might